

112	2023-01339201 Xu vs. Wang	Motion for Leave to Amend The motion of Defendants Yongmei Zhang, Hongbo Wang, Zhipeng Investment LLC, Bay Vista Investment LLC, Bo Kang Real Estate Investment LLC (collectively, “Defendants”) for leave to file their proposed first amended answer (“FAA”) is granted. The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. Code Civ. Proc. § 473(a) (1). The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code. Code of Civ. Proc. § 473(a) (1). Additionally, any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order. Code of Civ. Proc. § 576. A motion to amend a pleading before trial must: (1) include a copy of the proposed amendment or amended pleading; (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and (3) state what allegations are proposed to be added to the previous pleading, if any, by page, paragraph, and line number, the additional allegations are located. CRC 3.1324(a). A separate declaration must accompany the motion and must specify: (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier. CRC 3.1324(b). Defendants have substantially complied with the requirements of CRC 3.1324. To the extent Defendants have not completely complied with the requirements of CRC 3.1324, this does not impair the Court’s ability to review and assess the FAA. California courts generally allow great liberality, at all stages of the proceeding, in permitting the amendment of pleadings in order to resolve cases on their merits. <i>IMO Development Corp. v. Dow Corning</i> (1982) 135 Cal. App. 3d 451, 461. Because the policy favoring amendment is so strong, “it is a rare case in which a court will be justified in refusing a party leave to amend his pleadings so that he may properly present his case.” <i>Morgan v. Superior Court</i> (1959) 172 Cal. App. 2d 527, 530 (internal quotations omitted). This is particularly true for amendment of answers, as a defendant denied leave to amend is permanently deprived of a defense. <i>Hulsey v. Koehler</i> (1990) 218 Cal. App. 3d 1150, 1159. This liberality only applies so long as there is no prejudice to the opposing party. <i>Higgins v. Del Faro</i> (1981) 123 Cal. App. 3d 558, 564. Denial of leave to amend is appropriate where inexcusable delay <u>and</u> probable prejudice to the opposing party is shown. This may happen where a proposed amendment opens up an entirely new field of inquiry without any satisfactory explanation as to why the major change in point of attack had not been made long before trial. <i>Estate of Murphy v. Gulf Ins. Co.</i> (1978) 82 Cal. App. 3d 304, 311. If the party seeking the amendment has been dilatory, and the delay has prejudiced the opposing party, the judge has discretion to deny leave to amend. <i>Hirsa v. Sup.Ct. (Vickers)</i> (1981) 118 Cal. App. 3d 486, 490; <i>Melican v. Regents of Univ. of Calif.</i> (2007) 151 Cal. App. 4th 168, 176; <i>Fisher v. Larsen</i> (1982) 138 Cal. App. 3d 627, 649 (finding where plaintiff knew for over five months that certain claims had not been properly pleaded, and took no action to amend until after a summary judgment had been granted against it, it was not an abuse of
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discretion to deny leave to amend the complaint); *Hulsey v. Koehler* (1990) 218 Cal. App. 3d 1150.

In her opposition, Plaintiff largely argues issues going to the merits of the proposed amendment. Ordinarily, however, the court does not consider the validity of the proposed amended pleading in deciding whether to grant leave to amend. *Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048.

Notably, Plaintiff does *not* assert prejudice. “[I]t is an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment.” *Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048.

Accordingly, the motion is granted.

Moving party is ordered to give notice.